

		Lastly, the Court IMPOSES sanctions in the amount of \$3,503 against Defendants' counsel Kelly Trotter & Franzen due and payable to Kyle Scott Law within thirty (30) days of receiving notice. Plaintiff to give notice.
5.	<u>30-2025-01511675-CU-BC-NJC</u> Coastal Commercial Medical, LLC vs. PA Coastal Kids, LLC	Before the Court are two (2) Motions to Compel Deposition ("M-DEPO"), and Sanctions, brought by Plaintiff Coastal Commercial Medical, LLC ("Plaintiff") against Defendant PA Coastal MSO, LLC ("Defendant"). ROAs 27, 28. The underlying controversy is a breach of contract claim arising from a commercial lease of real property. ROA 10. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Chester Slonaker, M.D. ("Slonaker") for deposition and to provide testimony. ROA 27, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend & Stockton LLP, jointly and severally, in the amount of \$12,751.80, for the costs borne by Plaintiff in bringing the M-DEPO for Slonaker. ROA 28, p. 8. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Sections 2025.280 and 2025.450, compelling Defendant to produce employee Michael Manocchio ("Manocchio") for deposition and to provide testimony. ROA 28, p.2. Additionally, Plaintiff seeks monetary discovery sanctions upon Defendant and Defendant's counsel of record, Kilpatrick Townsend & Stockton LLP, jointly and severally, in the amount of \$7,624.30, for the costs borne by Plaintiff in bringing the M-DEPO for Manocchio. ROA 28, p. 8. Defendant requests that the Court deny Plaintiff's motions and issue a protective order precluding the depositions of

Manocchio and Slonaker and any discovery into Defendant's patient communications and financial information. ROA 88, ¶ IV.

I. Motions for a Protective Order

A motion for protective order under Section 2025.420 must be accompanied by a meet and confer declaration that complies with the provisions of Section 2016.040. Cal. Civ. Proc. Code § 2025.420(a). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will no longer suffice under this standard. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b).

The Court finds that Defendant's request for a protective order does not contain a declaration that complies with California Code of Civil Procedure Section 2016.040. Consequently, Defendant's request for a protective order is **DENIED**.

II. Valid Objections to Deposition Notice

Valid objections to deposition notice must go to error or irregularity of the notice. *See* Cal. Civ. Proc. Code § 2025.410(a). Further, serving a code compliant objection to a deposition notice does *not* automatically stay the deposition absent a motion by the objecting party to stay or quash the deposition. *See* Cal. Civ. Proc. Code § 2025.410(c).

A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. *Id.*

	Here, summons was served upon Defendant on September 15, 2025. ROA 4. On February 26, 2026, Plaintiff served Defendant with Notices of Deposition of Slonaker and Manocchio. ROA 42, ¶ 6; ROA 40, ¶ 6. The 20-day limit imposed by Section 2025.210 is satisfied here. Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270. Here, Plaintiff's February 26, 2026, Notices of Deposition scheduled the in-person deposition of Slonaker for March 17, 2026, and of Manocchio for March 18, 2026. ROA 42, ¶ 6; ROA 40, ¶ 6. Thus, the ten (10) day limit imposed by Section 2025.270 is satisfied. The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section 2025.250, upon motion accompanied by a meet and confer declaration and after considering "any factor tending to show whether the interests of justice will be served" in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b). Here, Plaintiff's deposition notice scheduled the deposition to occur in Fort Lauderdale, Florida, where both deponents reside. ROA 42, ¶ 6; ROA 40 ¶ 6; <i>see</i> ROA 42, Exh. A. Again, Plaintiff's notice complies with statutory guidelines. A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b).
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On March 12, 2026, Defendant served Responses and Objections to Plaintiff's Notices of Deposition and Demand for Production. ROA 42, ¶ 9; ROA 40, p. 69. The Court finds that Defendant's objections raised in opposition to Plaintiff's Deposition Notices are not valid objections to a properly noticed deposition. Accordingly, Defendant has waived any objection to Plaintiff's deposition notices to Slonaker and Manocchio on the grounds of error or irregularity. Additionally, because Defendant did not move the Court to stay or quash the deposition, Defendant's failure to produce Slonaker for Plaintiff's properly noticed deposition constitutes discovery misuse.

III. Motions to Compel Deposition

Under California Code of Civil Procedure Section 2025.450, when a party to the action fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent's attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a). All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must "be accompanied by a meet and confer declaration" that states that the moving party "has contacted the deponent to inquire about the nonappearance" or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's *further* responses to questions posed at deposition. *Id.*

Here, on March 10, 2026, Defendant informed Plaintiff by email that, due to issues raised in Plaintiff's responses to Defendant's discovery demands, Defendant would not produce either deponent. ROA 42, ¶ 8. In response, Plaintiff offered to withdraw the document production requests that the parties agreed should not be produced absent a protective order. ROA 42, Exh. F, p.40.

On March 11, 2026, Defendant responded by email that

	Plaintiff's offer to withdraw the document requests would not cure Defendant's objections to Plaintiff's Deposition demand and reiterated that Defendant would not produce either deponent for deposition. ROA 42, Exh. F, p. 37. On March 12, 2026, Defendant served Responses and Objections to Plaintiff's Notice of Deposition and Demand for Production. ROA 42, ¶ 9; ROA 40, Exh. G, p.69 On March 13, 2026, Plaintiff sent an email to Defendant advising Defendant of Defendant's improper objections and requesting Defendant provide authority for their refusal to provide deposition testimony and production. ROA 42, ¶ 10. On March 18, 2026, Plaintiff served both herein motions upon Defendant by email. ROA 27, p.9; ROA 28, p.9. Pursuant to the foregoing, and because Defendant failed to produce either deponent for the properly noticed depositions, the Court finds that Plaintiff has satisfied the less restrictive statutory meet and confer requirement under California Code of Civil Procedure Section 2025.450(b)(2). Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court, rule 3.1345(a). No separate statement is required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Ct. rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008). Here, the Court finds that Defendants failed to appear for Plaintiff's properly noticed depositions without serving valid objections. Because Defendants never provided a response to questions at deposition, the Court finds that Plaintiff is not required to submit a separate statement to justify Defendant's compelled deposition testimony.
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		However, motions compelling the deponent's production of documents must also "set forth specific facts showing good cause justifying the production for inspection of any document . . . in the deposition notice[]". Cal. Civ. Proc. Code § 2025.450(b)(1). Rule 3.1345 of the California Rules of Court achieves this by requiring motions to compel or to quash production at deposition to be accompanied by a separate statement. Cal. Rules of Court rule 3.1345(a). Pursuant to the foregoing, the Court finds that Plaintiff's motions are proper, that Defendant has not raised any valid objections to the deposition notice, and that, therefore, the deposition must proceed under Court order. The Court notes that Plaintiff did not submit separate statements setting forth specific facts showing good cause justifying the production of the documents sought in Plaintiff's deposition notices. Consequently, Plaintiff is not entitled to Defendant's compelled production of the documents sought in Plaintiff's Notice of Deposition to Slonaker or Manocchio. Because Plaintiff also does not seek to compel the production of the documents sought in Plaintiff's deposition notice, the Court does not attribute the absence of Plaintiff's separate statements as discovery misuse. IV. Sanctions re: Motions to Compel Deposition When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2025.450(g)(1). The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant's failure to
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	either raise legitimate objections to Plaintiff’s deposition notice, or for failing to appear at Plaintiff’s properly noticed deposition. Additionally, the Court finds no facts indicating that imposing monetary sanctions will result in an injustice to the Defendant. V. Apportioning Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts shall impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); <i>compare Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) <i>with Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing
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	to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where the client refused to submit to x-rays and the attorney’s declarations show that the attorney attempted to convince the client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 256. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th 771, 799 (2020). “An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney’s actions were in some way improper and contributed to the disobedience of the court order.” <i>Corns, supra</i>, 181 Cal. App. 3d at 200. Here, the record before the Court indicates that counsel for Defendant clearly instructed Defendant not to appear at Plaintiff’s properly noticed deposition and that the deponent’s failure to appear is not attributable to client misconduct. <i>See</i> ROA 42, Exh. F. Thus, sanctions are appropriate against Defendant’s counsel only. VI. Determining a Reasonable Sanctions Amount Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone</i>,
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	<i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Pursuant to the foregoing, and after having considered Plaintiff’s counsel’s declaration concerning attorney’s fees and costs associated with bringing the instant motions, the Court finds that Plaintiff’s counsel is entitled to monetary discovery sanctions in the amount of \$6,001.80 for the costs incurred in bringing Plaintiff’s M-DEPO to Slonaker, and \$2,874.30 for the costs incurred in bringing Plaintiff’s M-DEPO to Manocchio. Accordingly, the Court issues the following orders: The Court DENIES Defendant's request for a protective order, GRANTS Plaintiff’s Motions to Compel Deposition, and ORDERS Defendant to produce Slonaker and Manocchio for deposition by no later than August 15, 2026. Additionally, the Court IMPOSES monetary discovery sanctions upon counsel for Defendant, Kilpatrick Townsend & Stockton LLP, in the total collective amount of \$8,876.10, due and payable to Plaintiff’s counsel, Angelo & White, no later than thirty (30) days after receiving notice of this Order. Plaintiff shall give notice.
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